

Dhirendra Kumar Chaudhary v. State of U.P. & 5 Others

Allahabad High Court · Single Judge · 31 May 2024 · 2024:AHC:100639 · WRIT - A No. 18084 of 2022 · **Writ petition allowed (dismissal quashed; reinstatement; fresh inquiry permitted)**

HEADNOTE

A disciplinary dismissal of a UPPCL employee, on a charge of irregular revision of consumers' electricity bills 'ignoring the provisions of the Electricity Supply Code, 2005', is vitiated where the Establishment led no evidence — documentary or oral — to prove the charges through a Presenting Officer, the complainants/witnesses were never examined, and further inquiry reports and an I.T.-cell report were considered behind the employee's back. In a major-penalty inquiry the burden is on the Establishment to prove the charges before an impartial inquiry tribunal; failure to do so violates natural justice and vitiates the punishment.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::service-law-natural-justice

Burden on the Establishment to prove charges in a major-penalty inquiry

HOLDING

In a departmental inquiry carrying a major penalty, the Establishment must prove the charges by leading documentary and oral evidence through a Presenting Officer, with witnesses offered for cross-examination, before an inquiry tribunal that distances itself from the Establishment; relying on mere complaints and considering material (further inquiry/I.T.-cell reports) behind the employee's back vitiates the proceedings for breach of natural justice. Dismissal quashed; reinstatement, with liberty to hold a fresh inquiry from the charge-sheet stage. ¶ 28-37

FLAG Off-topic for the Supply Code: this is a service/disciplinary matter. The Supply Code, 2005 appears only as the backdrop of the misconduct charge (irregular bill revisions); no Code provision is construed. Retained in the corpus for completeness (and for its authorities).

PRINCIPLE TAGS

natural-justice-in-departmental-inquiry The Establishment must prove disciplinary charges by evidence led through a Presenting Officer; charges are not proof of themselves, and material used behind the delinquent's back vitiates the inquiry. Lead authorities: *State of U.P. v. Saroj Kumar Sinha* [1064026], *Roop Singh Negi v. Punjab National Bank* [1106974], *State of Uttaranchal v. Kharak Singh* [1693089]. ¶ 28-32

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLING-IRREGULARITY CHARGES

The Court did not decide whether the billing irregularities were made out; it quashed the punishment for procedural breach and left a fresh inquiry open. ¶ 36-37

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>State of U.P. v. Saroj Kumar Sinha</i> (2010) 2 SCC 772 [1064026] Supreme Court	In a departmental inquiry the Establishment must prove the charges by leading evidence; an inquiry officer is not to act as a prosecutor, and charges are not self-proving.	Relied on for the burden-of-proof principle in major-penalty inquiries. ¶ 32	Court	Relied on
<i>Roop Singh Negi v. Punjab National Bank</i> (2009) 2 SCC 570	A finding of misconduct cannot rest on mere allegations/complaints unsupported by legal evidence; the charge must be proved.	Relied on: mere complaints are not proof of the charges. ¶ 32	Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
[1106974] Supreme Court				
<i>State of Uttaranchal v. Kharak Singh</i> (2008) 8 SCC 236 [1693089] Supreme Court	Natural justice in disciplinary inquiries requires evidence to be led and the delinquent given opportunity to meet it.	Relied on within the natural-justice line. ¶ 32	Court	Relied on
<i>State of U.P. v. Kishori Lal</i> 2018 (9) ADJ 397 (DB) (LB) Allahabad High Court (DB)	Same principle on the Establishment's burden to prove charges in a departmental inquiry.	Referred within the catena. ¶ 32	Court	Referred
<i>Smt. Karuna Jaiswal v. State of U.P.</i> 2018 (9) ADJ 107 (DB) (LB) Allahabad High Court (DB)	Same principle on natural justice in disciplinary inquiries.	Referred within the catena. ¶ 32	Court	Referred
<i>State of U.P. v. Aditya Prasad Srivastava</i> 2017 (2) ADJ 554 (DB) (LB) Allahabad High Court (DB)	Same principle on proof of charges in a departmental inquiry.	Referred within the catena. ¶ 32	Court	Referred